

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Probate Notes

**2024PROP019804: IN THE MATTER OF THE BRATCHER FAMILY TRUST DATED
SEPTEMBER 27, 1985**

09/02/2026 in Department J6

Account and Report Third Account and Report of Status of Administration

No objection is made to the third account and report of the trustee except as to the trustee's attorney fees. Accordingly, the Court will approve the third account except as to the issue of attorney fees.

Angelique Friend hired her husband to represent her.

Probate Code §15687(b) provides:

(b) No parent, child, sibling, or spouse of a person who is a trustee, and no law partnership or corporation whose partner, shareholder, or employee is serving as a trustee shall receive any compensation for legal services performed for the trustee unless the trustee waives trustee compensation or unless the trustee obtains approval for the right to dual compensation as provided in subdivision (d).

Probate Code §15687(d) provides two methods for the approval of dual compensation otherwise prohibited under Probate Code §15687(a) and (b):

The trustee may petition for an order approving dual compensation under Probate Code §17200(b)(21). (Probate Code §15687(d).); or by notice. The trustee may give 30 days' written notice of the proposed action to those persons entitled to notice under Probate Code §17203. Any notified person may object within the 30-day period by writing to the trustee or by filing a petition under Probate Code §17200(b)(21). If the trustee receives an objection within the 30-day period and wishes dual compensation, a petition for approval under Probate Code §17200(b)(21) is required. (Probate Code §15687(d).)

In either case, "full disclosure of the nature of the compensation and relationship of the trustee to all persons receiving compensation" is required. (Probate Code §15687(d).)

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Trustee Friend put the following language in her Third account, "Petitioner's attorneys, Westlake Law Group, APC received \$20,603.01 in attorney fees for the period of February 14, 2024 through December 9, 2024, and are owed \$8,767.69 for service rendered from December 11, 2024 through April 14, 2026. e. Petitioner is married to her attorney. No other family or affiliate relationship exists between Petitioner and any agent hired by Petitioner during the account period." (Third Account, ¶14.d. and e.)

This is neither a petition to the court for an order approving dual compensation nor 30 days' written notice of the proposed action. This is a notice of the fact that Ms. Friend is married to her attorney and paid him \$20,603.01 from the trust and that the trust still owes him \$8,767.69.

Further, the "full disclosure of the nature of the compensation and relationship of the trustee to all persons receiving compensation" requires more than a statement that the trustee is married to her attorney. At the minimum, full disclosure should include that the trustee is seeking approval of dual compensation as provided in Probate Code §15687.

Ms. Friend failed to utilize either method, *advanced* written notice of the proposed action or a petition for a court order approving the dual compensation.

The Court will deny approval of the \$20,603.01 in attorney fees paid by the trustee to her attorney and spouse David Esquibias during the account period. The Court will deny approval of an additional \$8,767.69 in attorney fees listed as a liability of the trust. (Prob. Code, § 15687, subd. (b).) The Court will order the trustee to restore to the trust the \$20,603.01 paid out improperly and prohibit the trustee from paying any further attorney fees to Mr. Esquibias. The payment shall be made within 10 days of the court's order.